

## 24STCV28034 24STCV28034

County: los-angeles

Division: Civil Law and Motion

Department: 310

Hearing date: 2026-09-08

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Case Number: 24STCV28034 Hearing Date: September 8, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: September 8, 2026

Case Name: Ortega v. Volkswagen Group of America, Inc., et al.

Case No.: 24STCV28034

Matter: Motion for Attorney Fees

Moving Party: Plaintiff Jacqueline J. Ortega

Responding Party: Unopposed

Notice: OK

Ruling: The Motion is granted in part.

Moving party to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

This is a lemon law matter.

The parties have settled, and Plaintiff Jacqueline J. Ortega now seeks "\$16,478.13. This amount consists of (1) \$10,198.50 in attorneys' fees for Quill & Arrow, LLP [ ]; (2) a 1.25 multiplier enhancement on the attorney fees (or \$2,549.63); and (3) an additional \$4,000.00 for Plaintiff's counsel to review Defendant's Opposition; draft the Reply; and attend the hearing on this Motion."

There is no opposition.

California courts utilize the lodestar method to determine a reasonable fee award, multiplying the number of hours reasonably expended by a reasonable hourly rate (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132). A court may adjust the lodestar figure downward based on factors such as lack of success, inefficiency, or over-litigation (*Gorman v. Tassajara Development Corp.* (2009) 178 Cal.App.4th 44, 92).

The Court will not award a multiplier because, among other reasons, this was not a novel or complex matter.

Further, as there was no opposition and the time billed for the instant Motion was sufficient, the Court will not award the \$4,000 request to review the opposition and draft a reply.

Finally, the Court will reduce the rates of Kevin Jacobson and Stephen Basinger to \$550.

The Motion is granted in part. The Court awards \$10,194.

Moving party to give notice.